Louisa County Water Authority
Board of Directors
December 13, 2023

MEMBERS PRESENT: Mr. Douglas Smith, Vice-Chairman; Mr. Bob Hardy; Mr. Tom Filer; Mr. Byron Wilson

MEMBERS ABSENT: Mr. Judson Foster, Chairman; Mr. David Kies and Mr. Robert Morgan

OTHERS PRESENT: Ms. Pam Baughman, General Manager; Mr. Hunter Martin, Water Operations Manager; Mr. Dale Mullen, Interim County Attorney

A. Call to Order

Mr. Smith called the meeting to order at 5:58 pm.

1. ADOPTION OF THE AGENDA

Mr. Smith asked if there were any changes or additions to the agenda. Hearing none, Mr. Hardy made a motion to adopt the agenda as presented. The motion was seconded by Mr. Wilson and carried 4-0 among the members present.

B. Presentations

C. Citizen Information

D. Consent Agenda

2. APPROVAL OF THE MINUTES:

A. NOVEMBER 8, 2023 – REGULAR BUSINESS MEETING

3. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURE REPORT – NOVEMBER 2023
B. APPROVAL OF DISBURSEMENTS – NOVEMBER 2023
C. CONSTRUCTION FUND – NOVEMBER 2023

Mr. Hardy asked about moving banks to receive more interest. The General Manager stated a Request for Proposal for banking services has been advertised. Several rounds of questions have been asked and data submitted to the Procurement Officer.

Upon completion of the discussion and review of the Consent Agenda and Treasurer's Report, Mr. Hardy made a motion to approve the Consent Agenda and Treasurer's Report as presented. The motion was seconded by Mr. Filer and carried 4-0 among the members present.

E. Old Business

4. UPDATE – JAMES RIVER WATER PROJECT

The three major permits:

1) The Department of Marine Resources Commission permit no longer need to be obtained, due to a regulation change.
2) The Department of Environmental Quality permit is in hand.
3) The Army Corps of Engineers permits is "active. Three notices must be published for the Army Corps of Engineering permit: A. an Adverse Effects Notice; B. a Federal Historic Review Notice; and c. U.S. Fish and Wildlife Service Notice. All three notices have been published.

The Army Corps of Engineers permitting process is considered a "loose ill-defined process", without clearly defined timelines. The permitting process is driven by the National Historic Species Act and the Wildlife Species Act. The Adverse Effects Notice was published on December 7, 2023, with a 15-day close date. Public comments will be received and citizens or groups wanting to participate in the process as a consulting party must provide their interest or comments within the 15-day period. The first consulting party meeting will be held January 11th, 15th, or 17th. There is a 30-day review period of all comments and interested parties to serve as a consulting party. To date the Department of Historic Resources and the Monacan Nation have expressed their desire to serve as a consulting party and have provided comments.

The Federal Historic Review Notice has been advertised.

The US Fish and Wildlife Service Notice was issued December 4, 2023. There is a 60-day comment period which will expire on February 4, 2024.

The Army Corps of Engineers sent comments to the James River Water Authority and the response was returned on November 16, 2023. The consulting attorney feels the comments were adequately addressed.

The best-case scenario is that the Army Corps of Engineers permit will be issued mid to late February. As comments are received, the Consulting attorney will respond to them as quickly as possible to keep the process moving forward.

To date, eleven of the sixteen easements have been acquired. Clearing is to begin in January to avoid the long-eared bat nesting period. Construction is scheduled to begin in June of 2024. Fluvanna County is waiving all fees for ENS and Special Use Permit.

The Virginia Department of Health – Office of Drinking Water denied the loan/grant applied for by the James River Water Authority. They plan to apply again next year. Both counties will need to acquire funding for the remainder of the project. The anticipated cost to complete is $39 million.

5. NORTHEAST CREEK WATER TREATMENT PLANT

A. NECWTP SEDIMENTATION BASINS IMPROVEMENT (SLUDGE-VAC-SYSTEM UPDATE)

Project deferred until spring 2024. Will re-bid in early spring.

B. NANOFILTRATION GRATING EVALUATION / UPGRADE TO ACCESS / PALLET JACK

Project complete, pallet-jack received.

C. 4th OPERATOR

Interviewed two prospects, another interview was conducted on Tuesday, December 12, 2023.

D. HIGH SERVICE PUMP #2 – ROSS VALVE RE-BUILD

The Northeast Creek Water Plant staff rebuilt the Ross Valve on Thursday, December 7, 2023.

E. RAW WATER VALVE ACTUATOR

The raw water valve actuator is scheduled to be installed around the end of January 2024.

F. SHOWER REPLACEMENT

A quote for the emergency shower replacement was received from Paisley-Kerr in the amount of $9,400. Staff has been instructed to acquire additional pricing.

G. DECKING ON GENERATOR

Paisley-Kerr provided a quote in the amount of $9,995 to do the concrete work for the generator decking. They have been asked to proceed. The decking work will be evaluated in the spring of 2024.

6. ZION CROSSROADS WELL SYSTEM UPDATES

A. REPLACEMENT 50 HP PUMP/MOTOR (SPRING CREEK #3)

The replacement pump/motor for Spring Creek Well #3 has been received and is in inventory if needed.

B. SPRING CREEK #1 & #2

The pipe fitters began work on December 11, 2023. The electrician continues to work on pulling wire, checking rotation, etc.

Final expenditures include engineering, communications tie-in, electrical and completion of the interior piping.

The General Manager asked the Board to approve $180,000 for the Spring Creek Wells #1 & #2 project. To date $520,000 has been approved, $451,939.13 has been expended, and an additional $76,400 in electrical costs has been received.

Upon completion of the discussion, Mr. Filer made a motion to authorize additional funds to continue the project of bringing Spring Creek #1 and #2 wells online in the amount of $180,000, bringing to total approved for the project to $700,000. The motion was seconded by Mr. Hardy and carried 4-0 among the members present.

7. LOUISA REGIONAL WWTP

A. REGIONAL OPTIMIZATION AND PROCESS OPERATIONS STUDY

Staff feel that the updated version of the Regional Optimization and Process Operations Study provides guidance on treatment operations for various seasonal changes and conditions.

B. BLOWER

The blower is on the list of items to be completed.

C. WATER LEAK

The water leak is still on the items to be completed, but it can be isolated when not in use to prevent wasting water.

8. ZION CROSSROADS WWTP

A. LIGHTNING STRIKE

Most of the repairs have been completed and the insurance claim filed. The claim will remain open until all repairs can be completed. The General Manager reported that receiving funds from the County's insurance has proven difficult.

9. UPDATE – NEW BRIDGE WWTP

A. LIINER REPAIRS

Liner repairs in lagoon #2 have been complete. Inspection of lagoon #1 did not find any holes.

B. GRINDER PUMPS

The pumps have been received; staff just needs to schedule to have them installed.

C. ELECTRICAL WORK (EXTENSION CORDS)

The addition of electrical outlets and cabinet replacement began December 7, 2023, and is scheduled to be completed December 11, 2023.

D. BOOSTER PUMP

Staff is evaluating on how to proceed with replacement of the booster pump.

E. COST TO DATE BREAKDOWN

The Board reviewed the cost to date breakdown for the funding provided to the Authority to make improvements to the New Bridge Water and Sewer System.

F. DEPARTMENT OF WILDLIFE REOSURCES

The Department of Wildlife Resources has approved the installation of 5 buoys and two signs to identify an exclusionary zone in Lake Anna where the effluent line runs along the lakebed. The buoys have been ordered and guidance on the signs has been requested.

The General Manager was asked to verify the number of buoys, dimensions of the signs and the language to be included on the signs.

G. SIGN

The General Manager asked the Board if they wanted the Authority to pursue the installation of a shoreline sign since two signs will be installed along with the buoys. The Board asked for more information on the signs approved by the Department of Wildlife Resources before making a final decision on the shoreline sign.

H. DEPARTMENT OF ENVIRONMENTAL QUALITY – WARNING LETTER

The Department of Environmental Quality sent a warning letter for the Authority staff for exceedances in Total Suspended Solids (TSS) and for not including a letter of explanation with the submission of the eDMR.

I. LCWA WARNING LETTER RESPONSE

The Authority sent a response letter to the DEQ Warning Letter explaining that additional treatment enhancements were currently under development as soon as the electrician could install outlets for the installation of four new floating aerators. It was also reported to DEQ that due to staffing shortages, the Authority staff forgot to include a letter of explanation with the submission of the August 2023 eDMR.

J. TSS EXCEEDANCE EMAIL

The Department of Environmental Quality was notified on November 21, 2023, of a TSS exceedance on November 8, 2023. A letter of explanation will be included with the submission of the eDMR.

K. ENGINEERING FIRM SELECTION

The Board was informed that the Department of Environmental Quality contacted the Authority to inform staff that written notification by November 1, 2023, was missed for the selection of an engineering firm for the design of the New Bridge Wastewater Treatment Plant. The permit does not specify that written notification is required, but staff submitted a letter and will follow up with a copy of the "Intent to Proceed" with Dewberry Engineering for the design of the upgraded facility.

10. LEAD SERVICE LINE INVENTORY

Progress continues. The administrative inventory for Ferncliff and New Bridge residential have been complete. The Virginia Department of Health – Office of Drinking Water is aiding with the Northeast Creek area. Maintenance staff will begin field inventory work after the first of the year.

11. NORTHEAST CREEK DAM (SOUTH ANNA DAM #22) AND BOWLERS MILL DAM (SOUTH ANNA #2)

A. APPLICATION FOR FUNDING (NORTHEAST CREEK DAM)

The application for funding the design work at the Northeast Creek Dam has been submitted. The General Manager hopes that after the holidays the initial review is complete and any additional information request by the Department of Conservation and Recreation has been received.

B. LOW-LEVEL VALVES – EXERCISE

Bander-Smith placed the Authority on their schedule for March / April 2024 to be onsite for exercising the low-level valves for both Northeast Creek Reservoir Dam and Bowlers Mill Dam. They will also repair a railing on the Bowlers Mill intake structure.

The General Manager reported that both low-level valves have been exercised in the past.

12. PROPOSAL – ADDITION OP WATER TO ST. FRANCIS PUMP STATION

A. TOWN OF MINERAL APPROVAL

Written approval from the Town of Mineral has not been received to install water service at St. Francis pump station.

13. UTILITY STANDARDS

The Town of Louisa has not decided if they would like to participate in updating the Utility Standards.

F. <u>New Business</u>

14. LOUISA COUNTY WATER AUTHORITY FY2023 ANNUAL AUDIT – DRAFT

The Board was provided a copy of the draft Louisa County Water Authority FY2023 Annual Audit. Approval of the Annual Audit will be on the January 2024 Agenda.

15. CROSSING POINTE PUMP STATION

A. CERTIFICATE TO OPERATE

The Crossing Pointe Pump Station received the Certificate to Operate from The Department of Environmental Quality. The three businesses connected to the Get Captive Lagoon WWTP have paid connection fees to Louisa County Water Authority. In the coming weeks the three businesses (the Shell Gas Station / Truck Stop, McDonalds / BP and the UVA Dialysis Center) will be connected, and flow will be pumped to the Zion Crossroads WWTP.

B. REASSIGNMENT OF TOTAL NITROGEN AND TOTAL PHOSPHOROUS CREDITS TO ZION CROSSROADS WWTP

The Department of Environmental Quality has reassigned the Total Nitrogen and Total Phosphorous credits from the Get Captive Lagoon WWTP to the Zion Crossroads WWTP.

16. LAUREL HILL

A. DEPARTMENT OF ENVIRONMENTAL QUALITY – WARNING LETTER

The Department of Environmental Quality sent a warning letter for the Authority staff for exceedances in Total Suspended Solids (TSS) and BOD5 and for not including a letter of explanation with the submission of the eDMR.

B. LCWA's WARNING LETTER RESPONSE

The Authority sent a response letter to the DEQ Warning Letter explaining that during a routine maintenance check, staff discovered the aeration equipment to be non-functioning. The equipment failure occurred prior to annual sampling and staff believe the new equipment did not have enough time to optimize treatment prior to the required sampling. Authority staff offered to resample to ensure the new equipment was functioning properly and meeting permitted limits. It was also reported to DEQ that due to staffing shortages, the Authority staff forgot to include a letter of explanation with the submission of the August 2023 eDMR.

17. HOME SERVE

A. POWER POINT PRESENTATION FOR LINE PROTECTION AND LEAK PROTECTION

The Board reviewed the Power Point Presentation for line and leak protection.

B. PROPOSAL – SERVLINE UTILITIES Protection

The Board reviewed the proposal from ServLine for line and leak protection.

The Board took no action on the proposal provided by ServLine.

G. Reports

H. General Manager's Report

● **November levels**: At the end of November, the static well levels are up 3.7 feet from the end of October 2023 levels. From November 2022 to November 2023, the well levels are up approximately 5.9 feet.

The smaller table shows static well levels located nearer to the production wells. These levels are up approximately 11.45 feet from the end of October 2023 levels. From November 2022 to November 2023, the well levels are up approximately 29 feet.

As of December 12, 2023, the Department of Environmental Quality Drought website is indicating a drought watch for most of the Commonwealth. Normal conditions exist for reservoir levels and stream flows. Watch conditions for precipitation and groundwater.

● The current past-due listing is down to $3,670.64 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $6,701.30.

● Aqua Express Car Wash in Zion Crossroads exceeded their purchased capacity for one full year. A letter was sent telling them that they would need to up-size their purchased capacity from an inch and a half to a four inch at a cost of approximately $305,000. Aqua Express and Authority staff met on Wednesday, December 6, 2023, to discuss options. Aqua Express has agreed to pay the difference to a two-inch meter and Authority staff agreed to open a conversation with the Department of Environmental Quality for Aqua Express to use re-use water from the effluent line on Rt.15 – James Madison Highway.

● The Board was invited to join us for our Holiday Luncheon on December 21, 2023, at noon.

● The Authority will be closed for Christmas on Monday, December 25th and Tuesday, December 26th.

I. Committees

Personnel Committee met for the final time on Wednesday, November 29, 2023.

The Board was provided the final revision of the Employee Handbook. Approval of the Employee Handbook will be on the Agenda for the January 10, 2024 meeting.

J. Short Notice Items

K. Closed Session:

A. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(7) CONSULTATION WITH LEGAL COUNSEL AND BRIEFINGS BY STAFF MEMBERS OR CONSULTANTS PERTAINING TO ACTUAL OR PROBABLE LITIGATION, WHERE SUCH CONSULTATION OR BRIEFINGS IN OPEN MEETING WOULD ADVERSELY AFFECT THE NEGOTIATING OR LITIGATING POSTURE OF THE PUBLIC BODY.

B. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(1) TO DISCUSS AND CONSIDER PERSONNEL MATTERS; INCLUDING THE DISCIPLINE, APPOINTMENT, ASSIGNMENT, PERFORMANCE AND SALARIES OF SPECIFIC APPOINTEES AND EMPLOYEES.

Mr. Filer made a motion to close the regular open meeting and immediately reconvene in executive closed session for consultation with legal counsel and briefings by staff members or consultants pertaining to actual or probable litigation, where such consultation or briefings in open meeting would adversely affect the negotiating or litigating posture of the public body and to discuss and consider personnel matters; including the discipline, appointment, assignment, performance and salaries of specific appointees and employees. The motion was seconded by Mr. Hardy and carried 4-0 among the members present.

RETURN TO OPEN MEETING:

Vice-Chairman Smith closed the closed session and immediately reconvened in regular open meeting at 7:29 pm.

Mr. Smith read the following statement prior to the vote to certify the closed session.

"Pam will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	ABSENT
Mr. Smith	YES
Mr. Filer	YES
Mr. Hardy	YES
Mr. Kies	ABSENT
Mr. Morgan	ABSENT
Mr. Wilson	YES

The motion was carried 4-0 among the members present.

Mr. Wilson made a motion to give all Authority employees a 2% increase, retroactive to December 1, 2023. The motion was seconded by Mr. Filer and carried 3-1 among the members present, Mr. Hardy abstained from the vote.

Next meeting date - The next business meeting is scheduled for January 10, 2024

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Filer made a motion to adjourn at 7:32 pm. The motion was seconded by Mr. Wilson and carried 4-0.

BY ORDER OF:

Douglas Smith
Vice-Chairman
LOUISA COUNTY WATER AUTHORITY